

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JUAN ARAGONES DE LOS SANTOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. "JOHN DOE"
(name being fictitious) and P.O. BRANDON W. SCOTT,

Defendants.
-----X

Index No.:
Date Purchased:
SUMMONS

Plaintiff designates Bronx
County as the place of trial.

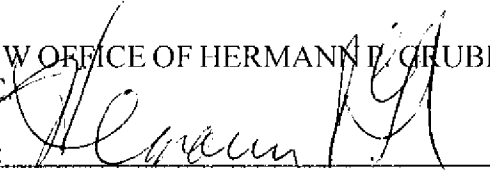
The basis of venue is:
Place of incident

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
August 16, 2022

LAW OFFICE OF HERMANN P. GRUBER,
P.C.

By: 

HERMANN P. GRUBER

Attorneys for Plaintiff
553 Broadway
Massapequa, NY 11758
516-663-0999
516-663-0990 (fax)

DEFENDANT'S ADDRESS:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. BRANDON W. SCOTT
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JUAN ARAGONES DE LOS SANTOS,

Index No.
Date Purchased:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. "JOHN DOE"
(name being fictitious) and P.O. BRANDON W. SCOTT

Defendants.

-----X

Plaintiff, JUAN ARAGONES DE LOS SANTOS, by his attorney, HERMANN P.

GRUBER, P.C., complaining of the defendants herein, respectfully alleges upon information
and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. Upon information and belief, at all times hereinafter mentioned, 176th Street was
and still is a street in the County of Bronx, City and State of New York.
2. Upon information and belief, at all times hereinafter mentioned, THE CITY OF
NEW YORK, is a municipal corporation organized and existing under and by virtue of the laws
of the State of New York.
3. Prior to the commencement of this action, the plaintiff on June 30, 2021, within
ninety (90) days after the cause of action accrued, and more than thirty (30) days prior to the
commencement of action, presented, served and filed a Notice of Claim with the defendant, THE
CITY OF NEW YORK, for adjustment of damages sustained by the plaintiff herein and upon
which this action is based. A copy of the Notice of Claim is annexed hereto as ***Exhibit "A"***. To
date, the defendants have neglected and refused to make adjustments thereon.

4. The statutory hearing of the plaintiff was held on May 17, 2022 by the defendant, THE CITY OF NEW YORK.

5. That on or about June 6, 2021 at approximately 9:00 pm at 255 E. 176th Street, Apt 3G, Bronx, NY 10457, State of New York, the plaintiff was unlawfully restrained, imprisoned, humiliated and caused to sustain personal injury and unlawfully arrested, all without the members of THE NEW YORK CITY POLICE DEPARTMENT (Defendant THE CITY OF NEW YORK) having probable cause to make such arrest and without THE NEW YORK CITY POLICE DEPARTMENT (Defendant THE CITY OF NEW YORK) conducting a proper and full investigation.

6. Plaintiff was detained against plaintiff's will until plaintiff's release from custody.

7. That upon information and belief, at all times hereinafter mentioned, New York City Police Officers "John Doe" and/or P.O. Brandon W. Scott were an employees of THE NEW YORK CITY POLICE DEPARTMENT (Defendant THE CITY OF NEW YORK).

8. That, upon information and belief, at all times hereinafter mentioned, New York City Police Officers "John Doe" and/or P.O. Brandon W. Scott were acting within the scope of his employment.

9. That at all times hereinafter mentioned, this plaintiff was detained by New York City police officers (Defendant THE CITY OF NEW YORK) without justification.

10. That at all times hereinafter mentioned, New York City police officers "John Doe" and/or and P.O. Brandon W. Scott knowingly and maliciously caused injury to this plaintiff, resulting in plaintiff sustaining severe emotional injuries, physical injuries including his right hand requiring surgery, as well as incurring medical expenses and lost wages.

11. That at all times hereinafter mentioned, there was no justification or excuse for the violent and willful arrest by the New York City police officers (Defendant THE CITY OF NEW YORK) of this plaintiff.

12. That by reason of the foregoing, plaintiff sustained multiple physical, personal and emotional injuries, medical bills, loss of employment, including loss of liberty, emotional distress, loss of enjoyment of life and humiliation, the full extent of which are not presently known. Plaintiff felt grave fear and intimidation for his safety. Plaintiff was deprived of freedom and liberty, was falsely arrested and imprisoned, where plaintiff sustained emotional harm, fear and anxiety.

13. Solely as a result of the foregoing, plaintiff, JUAN ARAGONES DE LOS SANTOS, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST**

14. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "13" with the same force and effect as if fully set forth at length herein.

15. That the aforescribed action by the defendants, their agents, servants and/or employees deprived plaintiff of his liberty.

16. Acting under color of law, defendants worked a denial of plaintiff's rights, privileges or immunities secured by the United States Constitution or by Federal law, to wit, by (a) depriving plaintiff of his liberty without due process of law, by taking him into custody and holding him there against his will; (b) by conspiring for the purpose of impeding and hindering

the due course of justice, with intent to deny plaintiff equal protection of laws; and (c) by refusing or neglecting to prevent such deprivations and denials to plaintiff, thereby depriving plaintiff of his rights, privileges, and immunities as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

17. Defendant, THE CITY OF NEW YORK, negligently trained the New York City police officers, members/employees of THE NEW YORK CITY POLICE DEPARTMENT and defendant Police Officer "John Doe" and/or and P.O. Brandon W. Scott.

18. There was no warrant for the arrest of plaintiff on June 6, 2021. The arrest was without reasonable grounds for said defendants to believe plaintiff had committed an offense and defendants knew they were without probable cause to arrest plaintiff, JUAN ARAGONES DE LOS SANTOS.

19. No complaint, information, or indictment was ever sworn against plaintiff alleging offenses occurring prior to the moment the New York City police officers handcuffed plaintiff and placed him under arrest.

20. As a result of their concerted unlawful and malicious arrest by defendants, plaintiff was deprived of both his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. §1983.

21. Solely as a result of the foregoing, plaintiff demands judgment for the false arrest against the defendant in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
DETENTION AND CONFINEMENT**

22. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "21" with the same force and effect as if fully set forth at length herein.

23. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees, and each of them, deprived plaintiff of the following rights, privileges and immunities:

- a. The right of plaintiff to be secure in their person and effects against unreasonable search and seizure;
- b. The right of plaintiff to be informed of the nature and cause of the accusation against them;
- c. The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws.

24. As a result of their concerted unlawful and malicious detention and confinement of plaintiff, defendants deprived plaintiff of both his right to his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. §1983.

25. Solely as a result of the foregoing, plaintiff demands judgment for the false detention and confinement against the defendant in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATIONS OF
42 U.S.C. 1983: REFUSING OR NEGLECTING TO PREVENT**

26. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "25" with the same force and effect as if fully set forth at length herein.

27. At all times relevant to this complaint, the New York City police officers and P.O. "JOHN DOE" and/or and P.O. Brandon W. Scott were acting under the direction and control of the defendants, THE CITY OF NEW YORK.

28. Acting under color of law and pursuant to official policy or custom, defendant, THE CITY OF NEW YORK, knowingly, recklessly, or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis the New York City police officers and P.O. "JOHN DOE" and/or and P.O. Brandon W. Scott in their duties to refrain from:

- a. unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- b. unlawfully and maliciously arresting, imprisoning and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- c. conspiring to violate the rights, privileges, and immunities guaranteed to plaintiff by the Constitution and laws of the United States and the laws of the City of New York; and
- d. otherwise depriving plaintiff of his constitutional and statutory rights, privileges and immunities.

29. Defendant, THE CITY OF NEW YORK had knowledge or, had they diligently exercised their duties to instruct, supervise, control and discipline on a continuing basis, should have had knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendant, THE CITY OF NEW YORK had power to prevent or aid in

preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

30. Defendant, THE CITY OF NEW YORK directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of Defendants, THE CITY OF NEW YORK and/or New York City police officers, including P.O. "JOHN DOE" and/or P.O. and Brandon W. Scott heretofore described.

31. As a direct and proximate cause of the negligent and intentional acts of defendants, plaintiff suffered physical injury, loss of income, and severe mental anguish in connection with the deprivation of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. §1983.

32. Solely as a result of the foregoing, plaintiff demands judgment for the refusing or neglecting to prevent the aforementioned against the defendant in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
MALICIOUS ABUSE OF PROCESS AND PROSECUTION**

33. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "32" with the same force and effect as if fully set forth at length herein.

34. Defendants maliciously used a "legal process" to accomplish some ulterior purpose for which it was not designed or intended, or which was not the legitimate purpose of the particular process employed.

35. Plaintiff committed no criminal offense or other offense and no police officer/detective could have objectively believed that plaintiff committed any offense under the law to justify a stop, let alone an arrest, a custodial arrest, incarceration and detention, the preferral of any charges, including but not limited to criminal sale of a controlled substance in the Third Degree, and his criminal prosecution associated with the preferral of those criminal charges.

36. There was no basis for the stop, arrest and custodial arrest of plaintiff by New York City police officers and P.O. "JOHN DOE" and/or P.O. Brandon W. Scott, each of whom is an agent and employee of defendant, THE CITY OF NEW YORK.

37. There was no justification to handcuff plaintiff, to detain plaintiff for the period of time he was held in custody until he appeared at his arraignment when and where he was released without bail and required to return to court thereafter when and where the charge preferred against plaintiff was eventually dismissed and the records sealed.

38. Solely as a result of the foregoing, plaintiff demands judgment for the malicious abuse of process against the defendant in an amount which exceeds the jurisdictional limits to all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

39. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "38" with the same force and effect as if fully set forth at length herein.

40. Defendant intentionally and deliberately inflicted emotion distress on plaintiff, JUAN ARAGONES DE LOS SANTOS, by maliciously prosecuting plaintiff, or by abusing the

lawful process by unlawful purpose, or by violating plaintiff's constitutional rights, or by falsely arresting and imprisoning the plaintiff, by conspiring against plaintiff, or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.

41. Defendant's conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

42. Defendant's intentional and outrageous conduct caused plaintiff to suffer severe emotional distress.

43. Plaintiff's arrest was humiliating and embarrassing, and induced stress and anxiety in plaintiff.

44. Plaintiff's arrest and the pendency of the criminal court proceeding, until it was dismissed, induced additional stress and anxiety, was emotionally distressful, and otherwise publically humiliating and embarrassing.

45. As a proximate result of the foregoing, plaintiff sustained severe and protracted emotional injuries, was incapacitated from pursuing his normal tasks, experienced great emotional pain and suffering, all which plaintiff believes will continue in the future, all to his detriment and loss in an amount which exceeds the jurisdictional limits of all other courts.

46. Solely as a result of the foregoing, plaintiff demands judgment for the intentional infliction of emotional distress against the defendant in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR
GROSS NEGLIGENCE

47. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "46" with the same force and effect as if fully set forth at length herein.

48. Defendant, THE CITY OF NEW YORK owed a duty to supervise or train the officers, including P.O. "John Doe" and/or P.O. Brandon W. Scott and to take steps to prevent events such as occurred here, to wit, the false arrest and imprisonment and the swearing to charges without probable cause.

49. Defendant P.O. "JOHN DOE" and/or P.O. Brandon W. Scott owed a duty to act according to the standard of ordinary care of a police officer, to wit, to conduct a proper investigation, the failure of which was the proximate cause of plaintiff's injury.

50. Defendant, P.O. "John Doe" and/or P.O. Brandon W. Scott breached that duty by failing to act as ordinary police officers detectives would act to wit, by failing to perform their duties and by defendant, THE CITY OF NEW YORK by failing adequately to control and to supervise its officers/detectives.

51. As a result of those breaches,, which were the proximate causes of plaintiff's injury, plaintiff, JUAN ARAGONES DE LOS SANTOS, suffered harm and damages.

52. Solely as a result of the foregoing, plaintiff demands judgment for gross negligence against the defendant in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

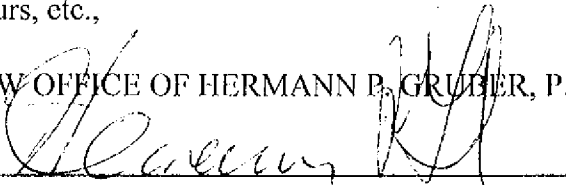
WHEREFORE, plaintiff demands judgment against the defendant as follows:

1. On the first cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
2. On the second cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
3. On the third cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
4. On the fourth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
5. On the fifth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
6. On the sixth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;
7. On the seventh cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; and
8. Together with the costs and disbursements of this action and such other and further relief as the Court deems just and proper.

Dated: Garden City, New York
August 16, 2022

Yours, etc.,

LAW OFFICE OF HERMANN P. GRUBER, P.C.

By: 

HERMANN P. GRUBER

Attorneys for Plaintiff

553 Broadway

Massapequa, NY 11758

Tel: 516-663-0999

Fax: 516-663-0990

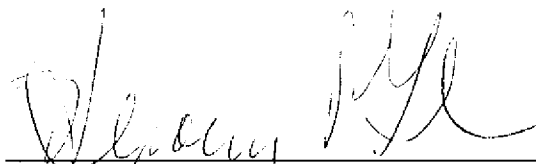
ATTORNEY VERIFICATION

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am the attorney for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by the said plaintiff is because said plaintiff resides outside the county where I maintain my office.

The grounds of my belief as to all matters not stated upon my own knowledge are based on information contained in my office files and records.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: Garden City, New York
August 16, 2022


HERMANN P. GRUBER